

Technical Supplement

Emergency Review and Constitutional Court Design by Simulation

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This supplement preserves detailed diagnostic tables and representative model weights accompanying the anonymous manuscript. The quantities are synthetic model outputs or coding assumptions, not estimates of causal reform effects. The replication materials contain the full source, frozen inputs, and report generators.

Table S1 reports alternative reading aids for different constitutional priorities: rights priority, emergency restraint, democratic responsiveness, legal stability, low conflict, and administrative feasibility. The table makes visible that any single score embeds a normative weighting choice.

Table S1: Multi-objective reading aids under different normative priorities

Scenario	Rights priority	Emergency restraint	Democratic response	Legal stability	Low conflict	Admin feasibility
Current-like	0.477	0.436	0.591	0.608	0.699	0.668
18-year terms	0.454	0.627	0.630	0.619	0.729	0.691
Written reasons	0.447	0.620	0.629	0.625	0.726	0.689
Auto merits	0.509	0.685	0.641	0.597	0.733	0.691
No merits gap	0.495	0.691	0.646	0.604	0.737	0.696
Recusal enforce.	0.457	0.627	0.635	0.619	0.732	0.679
Judicial electorate	0.461	0.628	0.636	0.619	0.733	0.673
Random panels	0.455	0.627	0.640	0.621	0.730	0.660
Integrity package	0.501	0.686	0.647	0.602	0.737	0.683
Constitutional remand	0.437	0.629	0.641	0.651	0.741	0.671
Public-interest filter	0.467	0.630	0.635	0.623	0.733	0.681

The directional score is intentionally secondary:

$$\text{DirectionalScore}_s = \text{mean}(\text{StabilityRights}_s, \text{LegitimacyControl}_s, \text{ClaimantSuccess}_s, \\ \text{PrecedentDurability}_s, \text{LowerCourtCompliance}_s, \text{EliteAcceptance}_s, \\ 1 - \text{AdministrativeCost}_s).$$

The stability-rights component averages legal stability, precedent durability, lower-court compliance, enforcement capacity, lower-court-resistance restraint, rights protection, reversal restraint, and conflict restraint. The legitimacy-control component averages legitimacy, democratic responsiveness, independence-accountability balance, partisan-alignment restraint, emergency-irregularity restraint, emergency-legitimacy-risk restraint, emergency-downstream restraint, government-noncompliance restraint, recusal-pressure restraint, forum-shopping restraint, emergency-opportunism restraint, and strategic-pressure restraint. Because those choices are normative, the paper uses the directional score only as a reading aid. Score differences below .010 are treated as indistinguishable in the manuscript’s substantive interpretation.

Table S2 is the audit table for the concern that formal court design might overweight the model. It exposes litigation-pipeline and downstream-enforcement quantities directly: certiorari admission, court-requested response, CVSG request, bar capital, claim strength, vehicle quality, genuine lower-court split rate, lower-court split depth, lower-court resistance, forum shopping, pre-review settlement, strategic plaintiff selection, repeat-player advantage, enforcement capacity, emergency opportunism, recusal incentive pressure, government noncompliance, emergency downstream effect, and precedent durability.

Table S2: Litigation-pipeline and downstream-enforcement diagnostics

Scenario	Cert admit	CFR	CVSG	Bar	Claim	Vehicle	Genuine split	Split	Resistance	Forum	Settlement	Plaintiff sel.	Repeat player	Enforcement	Emerg. opp.	Recusal press.	Gov. noncomp.	Emerg. down.	Prec. dur.
Current-like	0.204	0.119	0.001	0.570	0.575	0.681	0.535	0.589	0.332	0.548	0.005	0.549	0.384	0.552	0.570	0.491	0.183	0.187	0.598
18-year terms	0.197	0.119	0.001	0.570	0.575	0.681	0.535	0.589	0.321	0.506	0.007	0.549	0.384	0.561	0.417	0.497	0.147	0.113	0.632
Written emergency reasons	0.202	0.119	0.001	0.570	0.575	0.681	0.535	0.589	0.322	0.506	0.007	0.549	0.384	0.561	0.391	0.497	0.149	0.129	0.651
Automatic merits follow-up	0.202	0.120	0.001	0.570	0.575	0.681	0.535	0.589	0.317	0.507	0.007	0.549	0.384	0.567	0.369	0.497	0.150	0.089	0.587
No emergency merits gap	0.204	0.119	0.001	0.570	0.575	0.681	0.535	0.589	0.317	0.507	0.008	0.549	0.384	0.567	0.349	0.509	0.148	0.088	0.604
Strong recusal enforcement	0.202	0.119	0.001	0.570	0.575	0.681	0.535	0.589	0.321	0.506	0.007	0.549	0.384	0.561	0.418	0.514	0.149	0.114	0.633
Judicial electorate selection	0.206	0.120	0.001	0.570	0.575	0.681	0.535	0.589	0.321	0.506	0.007	0.549	0.384	0.562	0.418	0.500	0.148	0.114	0.634
Random merits panels	0.201	0.120	0.001	0.570	0.575	0.681	0.535	0.589	0.321	0.476	0.007	0.549	0.384	0.561	0.418	0.604	0.148	0.114	0.639
Emergency integrity package	0.204	0.121	0.001	0.570	0.575	0.681	0.535	0.589	0.317	0.507	0.007	0.549	0.384	0.567	0.369	0.513	0.148	0.090	0.598
Jurisdiction-stripping constraints	0.203	0.119	0.001	0.570	0.575	0.681	0.535	0.589	0.321	0.456	0.007	0.549	0.384	0.591	0.417	0.497	0.162	0.114	0.632
Legislative override window	0.202	0.120	0.001	0.570	0.575	0.681	0.535	0.589	0.322	0.507	0.007	0.549	0.384	0.563	0.418	0.497	0.158	0.114	0.632
Constitutional remand	0.208	0.119	0.001	0.570	0.575	0.681	0.535	0.589	0.286	0.465	0.007	0.549	0.384	0.580	0.418	0.501	0.146	0.114	0.698
Public-interest filter	0.207	0.119	0.001	0.570	0.575	0.681	0.535	0.589	0.321	0.421	0.007	0.549	0.384	0.562	0.418	0.501	0.148	0.113	0.644
Remand + override window	0.205	0.120	0.001	0.570	0.575	0.681	0.535	0.589	0.286	0.465	0.007	0.549	0.384	0.580	0.391	0.501	0.145	0.129	0.711
Panel + jurisdiction safeguards	0.202	0.120	0.001	0.570	0.575	0.681	0.535	0.589	0.322	0.425	0.007	0.549	0.384	0.589	0.403	0.632	0.157	0.131	0.669

Table S3 records the interpretive rule used in the results section: index movement is most informative when it travels with downstream rights, compliance, implementation, conflict, or cost measures.

Table S3: Interpretive rules for index and downstream effects

Claim	Coding relationship	Downstream check	Manuscript use
Written emergency reasons reduce emergency irregularity	Partly coded	Downstream disruption, compliance, and rights outputs	Read with downstream disruption, compliance, and rights outputs
Automatic merits follow-up reduces merits-displacing emergency relief	Partly coded	Workload, lower-court compliance, and process-legitimacy changes	Read with emergency walkthrough and mechanism table
No emergency relief without merits review produces the lowest irregularity	Strongly coded	Tradeoff is whether rights claimant success, settlement, or downstream compliance worsens	Treat as design implication plus tradeoff test
Judicial-electorate selection affects appointment-pressure diagnostics more than emergency outputs	Independent of emergency metric	Emergent if legitimacy/alignment changes without comparable emergency movement	Read as selection-design contrast
Randomized panels or remand rules have mixed profiles	Weakly coded	Emergent through access, correction, compliance, and administrative-cost channels	Read through access, correction, and implementation channels

Table S4 records representative weights used by the simulator. These are source-informed and design-prior coding choices, not fitted coefficients.

Table S4: Representative model weights and decision rules

Component	Representative rule	Interpretation
Admission	0.18 + .22 cert pressure +.12 lower-court conflict +.10 lower-court error +.13 split depth +.06 genuine split +.15 SG signal +.10 amicus signal +.08 split maturity +.07 relist signal +.06 bar capital +.10 claim strength +.09 vehicle quality +.05 specialist counsel +.05 repeat-player signal +.05 strategic-plaintiff signal +.02 forum-shopping signal +.08 conditional reversal -.06 settlement pressure -.16 vehicle defect, plus path adjustment, CFR, and CVSG increments	Admission is an institutional screen, not a fixed docket quota.
Voting	Legal concern receives weight .42; rights concern uses rights burden, justice rights sensitivity, and weight .44; claim strength, vehicle quality, and bar capital can modestly increase merits credibility; democratic mandate, legislative quality, institutionalism, emergency deference, repeat-player pressure, forum-shopping signal, precedent stability, and accountability pull reduce or increase invalidation propensity.	Merits votes mix legal, rights, strategic, institutional, and emergency-deference considerations.
Emergency irregularity	Open emergency rule base .32, no-merits penalty .22, shadow stay .24, reasoned order -.08, merits acceleration -.07, partisan salience .12, ambiguity .08, emergency opportunism .10.	The legacy <code>shadowDocketAbuse</code> field is retained in CSV outputs for compatibility; the paper-facing index is emergency irregularity.
Process legitimacy	Legitimacy base .48, public attention .16, legislative quality .10, merits reason-giving .18, recusal discipline up to .16, council warning .06, emergency-process boost or shadow-stay penalty, emergency irregularity -.24, partisan alignment -.20; the process-legitimacy proxy then subtracts emergency legitimacy risk .18, partisan alignment .12, appointment pressure .08, and court-curbing .10.	The index rewards visible process and penalizes opaque or partisan-looking intervention; it is not direct public-opinion measurement.
Compliance	Lower-court compliance rises with enforcement capacity and merits clarity, and falls with lower-court conflict, error risk, split depth, ideological drift, lower-court resistance, state conflict, invalidation shock, and government noncompliance.	Enforcement and implementation are modeled separately from formal legal validity.
Conflict	Conflict potential .38, executive defiance .18, lower-court conflict .08, lower-court resistance .10, forum shopping .04, conflict load .12, legislative defiance .10, government noncompliance, emergency downstream effect, invalidating high-mandate laws .14, emergency relief .12, cross-court disagreement .16, override attempt .06.	Constitutional conflict is cumulative and rises when legal disagreement becomes interbranch disagreement.
Override	Attempt pressure combines override pressure .34, democratic mandate .30, public attention .18, conflict load .12, legislative defiance .12, override adaptation .10, and rights-burden penalty -.24.	Accountability devices affect implementation only after invalidation and can generate rights carveouts or repeated override loops.